

Shallu Alias Anjali vs Vikas Sharma on 11 March, 2022

Author: Tashi Rabstan

Bench: Tashi Rabstan

Sr. No. 27

HIGH COURT OF JAMMU AND KASHMIR AND LADAKH
AT JAMMU

TrP (C) No26/2021
CM(6779/2021)

Shallu alias Anjali

....Petitioner/Appellant(s)

Through :- Ms. Radha Sharma, Advocate.

V/s

Vikas Sharma

....Respondent(s)

Through :- None.

Coram: HON'BLE MR. JUSTICE TASHI RABSTAN, JUDGE

ORDER

11.03.2022

1. Present application has been filed by the applicant, namely, Shallu alias Anjali seeking transfer of case titled "Vikas Sharma Vs. Shallu @ Anjali"

filed under Section 13(1) of J&K Hindu Marriage Act pending before the court of learned District Judge Kishtwar to any other court of competent jurisdiction at Jammu.

2. It is contended that the marriage between the applicant and the respondent was solemnized in accordance with the Hindu rights and customs in the on 27.08.2018 at Jammu. Out of the marriage, a son, namely, Hrinayak Sharma, was born on 31.07.2019. After the marriage, the parties first resided together in a rented accommodation at Muthi, Jammu for about 6 months and thereafter shifted to home of respondent and started living in a joint family along with parents of respondent at Nagrota, Jammu. It is also contended that due to harassment and torture by the respondent, the

petitioner was forced to leave the matrimonial home merely after one and a half month after the birth of child. Now due to estranged relations between the parties, the petitioner is living at Muthi, Jammu along with her minor son, in the house of some relatives. The respondent has filed a petition under Section 13(1) of Hindu Marriage Act against the petitioner at District Court, Kishtwar in January, 2021. The petitioner seeks transfer of the case from Kishtwar to any other competent Court at Jammu on the following grounds:-

(i) That the respondent herein has filed the divorce case referred to herein above at Kishtwar merely to further harass and torture the petitioner, since he himself is residing at Nagrota Jammu along with his parents and brothers;

(ii) That the petitioner has never been to Kishtwar in the house of respondent, as alleged in the petition. The parties have never been together or lived together at Kishtwar. The respondent has filed the case at Kishtwar merely to harass the petitioner otherwise too, the petitioner is living with her minor son at Jammu and respondent is also living at Nagrota Jammu and respondent has deliberately filed the petition at Kishtwar since he understands well that the petitioner shall not be able to peruse her case;

(iii) That the petitioner is staying along with her minor son. Her parents have since died she has a great difficulty in contesting this case at Kishtwar, hence she seeks transfer of the case from Kishtwar to any other competent Court at Jammu.

3. Since none has appeared on behalf of the respondent despite service, therefore, it is evident that the respondent has no serious objection for allowing the present application.

4. Viewed thus, the present application is allowed and the petition filed by the respondent herein, under Section 13(1) of the J&K Hindu Marriage Act titled "Vikas Sharma Vs. Shallu alias Anjali" pending before the court of learned District Judge, Kishtwar is transferred to the court of learned Principal Family Court, Jammu. Learned District Judge, Kishtwar is directed to transmit the entire record of the case mentioned herein above to the court of learned Principal Family Court, Jammu which upon receiving the same, shall issue notice to the parties.

5. Disposed of as above along with connected CM.

(Tashi Rabstan) Judge Jammu:

11.03.2022 „Madan Verma Whether the order is speaking: Yes/No. Whether the order is reportable: Yes/No.